

KABC010236472023



**IN THE COURT OF THE LIX ADDL.CITY CIVIL &
SESSIONS JUDGE, BANGALORE CITY
(CCH-60)**

Dated this the 21st day of June 2024.

**PRESENT : SRI. SOMASHEKAR A., B.A.L., LL.M.,
LIX ADDL.CITY CIVIL & SESSIONS JUDGE,
BANGALORE CITY.**

Ex.No.2285/2023

Decree Holder/ : Sri.N.C.Raju
(By Sri.H.P.L., Adv.)

V/s.

Judgment Debtors : Sri.R.Madhu and others.
(By. Sri.A.S.S., Adv.)

ORDERS

This Execution petition is filed by the Decree Holder to direct the JDR No.1 to execute the registered sale deed as per the Judgment and decree dated.31.07.2023.

2. In response to the notice Judgment Debtor No.1 appeared and contest the matter on the ground that the

alleged property claimed by the Decree Holder does not exist. The orders obtained by misrepresentation before the court has no legal sanctity and it is not enforceable. Therefore, the execution petition is not maintainable.

3. During the course of proceedings, the decree holder has filed draft sale deed with a request to transmit the same to the concerned Sub-Registrar office for registration as per the decree passed by this court in O.S.No.5828/2016. Against the said draft sale deed JDR No.1 has filed objection contending that the mortgage was executed before filing of this decree and decree holder has not sought any declaration or cancellation of the Mortgage deed and there reflects encumbrance of the suit property. Therefore, the very execution petition and as well as draft sale deed are not valid under law and thus he prayed to reject the draft sale deed furnished by the decree holder.

4. Heard both counsels at length and perused the materials available on record.

5. The points that arise for my consideration are:-

1) Whether the draft sale deed produced by the DHR is in consonance with the Judgment and

decree passed by this court as per Ex.P.1 agreement of sale transmit to the concerned Sub-Registrar for registration in terms and condition Judgment and decree passed by this court in O.S.No.5828/2016 dated.31.07.2023?

2) What order?

6. My answer to the above points are :-

Point No.1 : In the Affirmative,

Point No.2 : As per final order for the following:-

REASONS

7. **Point No.1**:- As could be seen from the record it appears that this Execution petition is arised out of the Judgment and decree passed by this court in O.S.No.5828/2016 dated.31.07.2023. On careful reading of the said Judgment passed by my learned predecessor, it appears that Decree Holder has filed suit against the defendants seeking for specific relief of specific performance of contract on the basis of an agreement of sale dated.23.04.2016. The said suit was contested by the defendants and thereafter by considering the merits of the case my predecessor in office was pleased to decreed the suit and wherein the defendant No.1 is directed to execute

the registered sale deed in favour of plaintiff as agreed in Ex.P.1 within one month from 30.07.2023. After expiry of the said period the present execution petition is filed by the decree holder to execute the decree. During the course of proceedings the decree holder has filed the draft sale deed dated.06.04.2024 before this court, against which the Judgment debtor has filed objections.

8. It is worth to note that the Judgment and decree passed by my learned predecessor in office in O.S.No.5828/2016 has not challenged by the JDR before any appellate court. Therefore, the said Judgment is unchallenged. Under the circumstances, the Judgment Debtor is bound to act upon the said judgment and decree and he shall execute the registered sale deed of the suit property in favour of plaintiff as agreed in agreement of sale dated.24.03.2016, which is marked at Ex.P.1 in O.S.No.5828/2016.

9. The Judgment Debtor no doubt taken a contention that the Mortgage deed was executed before filing of original suit Decree Holder has not seeking any

declaration or cancellation of Mortgage deed dated.20.10.2015. The said contention taken by the defendant in his written statement filed in the original suit has been clearly demonstrated by my learned predecessor in office while rendering the Judgment and Decree passed in O.S.No.5828/2016. Under the said circumstances this court cannot go behind the decree. Therefore, there is no merit in the objections raised by the Judgment Debtor.

10. By considering facts and circumstances of the case on hand, I do not find any merits in the arguments advancement by the JDR counsel. On the other hand, if the decree is not executed, the very purpose of passing of the decree will be frustrated. The DHR is fighting his rights ever-since 2016, almost 8 years has been lapsed inspite of the Judgment Debtor No.1/defendant for one or other reasons protracting the proceedings. Such tactics cannot be entertained at any stretch of imagination. With these observation it is my considered opinion that it is a fit case to transmit draft sale deed to the concerned Sub-Registrar for registration as per law. Therefore without much discussion I answered point No.1 in the **Affirmative.**

9. **ISSUE NO.2**:- For the foregoing reasons, I proceed to pass the following:-

ORDER

Objection raised by the JDR No.1 regarding draft Sale deed dated.06.04.2024 is not sustainable and same is rejected.

Consequently, the draft Sale deed produced by the DHR is taken on record.

*[Dictated to the Steno Gr-II, transcribed by him, corrected, signed and then pronounced by me, in the Open Court on this the **21st day of June, 2024**).*

[Somashekar A.]
LIX Addl. City Civil & Sessions Judge.
BANGALORE.

**Order pronounced in the Open Court
(Vide separate Order)**

ORDER

Objection raised by the JDR No.1 regarding draft Sale deed dated.06.04.2024 is not sustainable and same is rejected.

Consequently, the draft Sale deed produced by the DHR is taken on record.

Office is directed to verify the same and put up for further steps call on **08.07.2024.**

**LIX Addl. City Civil & Sessions Judge,
BANGALORE.**